

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Matthew Chaves	Team: Squad #10	CCRB Case #: 201801928	☒ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☒ O.L.	☐ Injury
Incident Date(s) Friday, 03/09/2018 6:40 PM	Location of Incident: 115 West 45th Street	18 Mo. SOL 9/9/2019	Precinct: 18		
Date/Time CV Reported Mon, 03/12/2018 3:20 PM	CV Reported At: CCRB	How CV Reported: E-mail	Date/Time Received at CCRB Mon, 03/12/2018 3:20 PM		

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Franklin Diaz	06325	946932	MTN PCT
2. POM Christian Casillo	01020	959535	MTN PCT
3. DT3 Stephan Kroski	7189	947142	MTN DET

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. SGT Sean Coniker	563	940020	MTN PCT
2. POM Anthony Ciro	13751	945589	MTN PCT

Officer(s)	Allegation	Investigator Recommendation
A . DT3 Stephan Kroski	Abuse: Detective Stephan Kroski took a recording of § 87(2)(b)	A . Exonerated
B . POM Franklin Diaz	Abuse: Police Officer Franklin Diaz questioned § 87(2)(b)	B . Exonerated
C . POM Franklin Diaz	Off. Language: Police Officer Franklin Diaz made remarks to § 87(2)(b) based upon race.	C . Unfounded
D . POM Franklin Diaz	Abuse: Police Officer Franklin Diaz stopped § 87(2)(b)	D . Exonerated
E . POM Christian Casillo	Abuse: Police Officer Christian Casillo stopped § 87(2)(b)	E . Exonerated
F . POM Franklin Diaz	Abuse: Police Officer Franklin Diaz frisked § 87(2)(b)	F . Substantiated
G . POM Franklin Diaz	Abuse: Police Officer Franklin Diaz searched § 87(2)(b)	G . Substantiated
H . POM Franklin Diaz	Abuse: Police Officer Franklin Diaz threatened to arrest § 87(2)(b)	H . Exonerated
I . POM Franklin Diaz	Abuse: Police Officer Franklin Diaz threatened § 87(2)(b) with the use of force.	I . Substantiated
J . POM Franklin Diaz	Force: Police Officer Franklin Diaz used physical force against § 87(2)(b)	J . Unfounded
K . POM Franklin Diaz	Abuse: Police Officer Franklin Diaz interfered with § 87(2)(b)'s use of a recording device.	K . Unfounded
§ 87(4-b) § 87(2)(g)		

Case Summary

On March 9, 2018, § 87(2)(b) called IAB and filed a complaint as this incident was still ongoing. On March 10, 2018, § 87(2)(b) went in person to the IAB command center and provided an additional statement regarding this incident. His collected statements to IAB were assigned original log number § 87(2)(b), which was referred to the CCRB as referral log number § 87(2)(b). In addition, on March 10, 2018, § 87(2)(b) filed a duplicate complaint about this incident with the CCRB via email. The IAB referral log was received by the CCRB on March 21, 2018.

At approximately 6:40 p.m. on March 9, 2018, § 87(2)(b) was standing inside of the Café Cranberry delicatessen and café, located at 115 West 45th Street in Manhattan, when he was approached by Detective Stephan Kroski of the 18th Precinct (Midtown North) Detective Squad. Detective Kroski and § 87(2)(b) spoke briefly, and § 87(2)(b) recorded a portion of this conversation with his cell phone. Detective Kroski also took out his Department-issued cell phone and appeared to record § 87(2)(b) with it (**Allegation A: Abuse of Authority: Photography/Videography: Exonerated**). Detective Kroski left the incident area, while § 87(2)(b) remained inside of the café and called IAB.

At approximately 7:24 p.m., Police Officer Franklin Diaz and Police Officer Christian Casillo of the 18th Precinct (Midtown North) entered Café Cranberry and spoke to § 87(2)(b) § 87(2)(b) who told them that § 87(2)(b) was not welcome inside of the café. Police Officer Diaz then approached § 87(2)(b) and asked, “You selling drugs up here?” (**Allegation B: Abuse of Authority: Question: Exonerated, Allegation C: Offensive Language: Race: Unfounded**).

Police Officer Diaz then told § 87(2)(b) that he had to leave the café. § 87(2)(b) began recording the incident again with his cell phone. He refused to leave and argued with Police Officer Diaz, who repeatedly requested § 87(2)(b)'s identification. § 87(2)(b) refused to provide his ID. Police Officer Diaz and Police Officer Casillo then stopped § 87(2)(b) (**Allegation D: Abuse of Authority: Stop: Exonerated, Allegation E: Abuse of Authority: Stop: Exonerated**), and Police Officer Diaz continued to ask § 87(2)(b) for his identification. Police Officer Diaz then patted the outside of § 87(2)(b)'s pants pocket, reached into the pocket, removed his wallet, and took his ID out of his wallet (**Allegation F: Abuse of Authority: Frisk: Substantiated, Allegation G: Abuse of Authority: Search: Substantiated**).

Police Officer Diaz filled out a complaint report stating that § 87(2)(b) was trespassing within the café, but did not arrest § 87(2)(b). After finishing the complaint report, Police Officer Diaz gave § 87(2)(b) his ID back and told him that if he did not leave the café then he would be arrested (**Allegation H: Abuse of Authority: Threat of Arrest: Exonerated**). § 87(2)(b) then left the café. However, after walking through the café's front door, § 87(2)(b) turned and cursed in the direction of Police Officer Diaz and the café manager. Police Officer Diaz walked outside, approached § 87(2)(b) closely, and

asked him twice to “Say that again” (**Allegation I: Abuse of Authority: Threat of Force: Substantiated**). Police Officer Diaz then allegedly grabbed § 87(2)(b)'s arm and twisted it behind his back for approximately thirty seconds while grabbing at § 87(2)(b)'s cell phone (**Allegation J: Force: Physical Force: Unfounded, Allegation K: Abuse of Authority: Interference with Recording: Unfounded**). § 87(2)(b) left the incident area without being arrested or issued a summons. However, Police Officer Diaz would later fill out a voided arrest report for § 87(2)(b) for this incident.

The investigation obtained cell phone video of this incident, recorded and provided by § 87(2)(b). The investigation also obtained video from body-worn cameras (BWCs) worn by Police Officer Casillo and Police Officer Ciro. § 87(4-b), § 87(2)(g)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

Findings and Recommendations

Allegation A – Abuse of Authority: Detective Stephan Kroski took a recording of

§ 87(2)(b)

§ 87(2)(b) was interviewed at the CCRB on March 12, 2018 (**Board Review 01**). § 87(2)(b) provided an un-sworn, recorded statement at the incident location on March 21, 2018 (**Board Review 02, Board Review 29**). Detective Kroski was interviewed on May 3, 2018 (**Board Review 03**).

It is undisputed that on the incident date, Detective Kroski went to Café Cranberry to investigate an unrelated incident. Detective Kroski spoke to § 87(2)(b) who pointed out § 87(2)(b). Detective Kroski approached § 87(2)(b) and told him that he either needed to make a purchase or leave. § 87(2)(b) accused Detective Kroski of racially profiling him, and Detective Kroski denied doing so. § 87(2)(b) began recording Detective Kroski with his cell phone, and Detective Kroski took out his cell phone and held it so that the camera was pointed towards § 87(2)(b) § 87(2)(b) eventually purchased a drink and Detective Kroski left the café.

In his interview, § 87(2)(b) stated that he went to the cashier to order a hot chocolate. Detective Kroski asked § 87(2)(b) “Who is this guy, is he one of the guys who cause problems?” Detective Kroski then approached § 87(2)(b) and said “Are you buying something? If you’re not buying something, then the manager is asking you to leave.” § 87(2)(b) bought a drink and then asked for Detective Kroski’s shield number. Detective Kroski showed § 87(2)(b) his shield, and § 87(2)(b) took a photo of it with his phone. Detective Kroski then began recording § 87(2)(b) with his cell phone before leaving the store.

In his field interview, § 87(2)(b) stated that he told Detective Kroski that § 87(2)(b) had been involved in a drug transaction earlier in the day and that he did not want § 87(2)(b) in the store.

In his interview, Detective Kroski stated that § 87(2)(b) asked Detective Kroski to ask § 87(2)(b) to leave. Detective Kroski approached § 87(2)(b) identified himself as a police officer, and told § 87(2)(b) that if he was not going to buy anything, then he would have to leave. § 87(2)(b) was initially calm, but became more agitated as Detective Kroski told him to leave. After approximately 30 seconds, § 87(2)(b) started recording Detective Kroski with his cell phone. Detective Kroski and § 87(2)(b) spoke for approximately one more minute. During this time, Detective Kroski took out his department phone “as a bluff,” but did not record § 87(2)(b).

In the cell phone video of this portion of the incident provided by § 87(2)(b) (**Board Review 04**), Detective Kroski can be seen standing in front of § 87(2)(b) and holding his cell phone so that the rear of the phone (including the camera aperture) is pointed towards § 87(2)(b).



201801928_20180320_1621_DM.MOV

According to NYPD Operations Order 20 (effective May 5, 2015), an officer may use his Department-issued cell phone to record any public interaction, regardless of context, that escalates and becomes adversarial, so long as it is not expressly prohibited. An officer may also use his Department issued cell phone to record an encounter in which they have observed a potential crime or violation (**Board Review 05**). According to New York Penal Law 140.05, a person is guilty of trespass when he knowingly enters or remains unlawfully in or upon premises. A person "enters or remains unlawfully" in or upon premises when he is not licensed or privileged to do so. A person loses their license or privilege to remain at a location when he defies a lawful order not to enter or remain, personally communicated to him by the owner of such premises or other authorized person (**Board Review 18**).

§ 87(2)(g)

Therefore, it is recommended that **Allegation A** be exonerated.

Allegation B – Abuse of Authority: Police Officer Franklin Diaz questioned § 87(2)(b)

Allegation C – Offensive Language: Police Officer Franklin Diaz made remarks to § 87(2)(b) based on race.

Police Officer Christian Casillo was interviewed on May 3, 2018 (**Board Review 06**). Police Officer Franklin Diaz was interviewed on June 22, 2018 (**Board Review 07**).

It is undisputed that after Detective Kroski left Café Cranberry § 87(2)(b) remained inside, Police Officer Diaz and Police Officer Casillo entered the café, and Police Officer Diaz told § 87(2)(b) to leave. At this point, § 87(2)(b) was speaking on his cell phone to an IAB operator.

During this phone call, which was recorded by IAB and provided to the investigation, § 87(2)(b) told the IAB operator that he had been approached by officers because of racial profiling (**Board Review 08**). At timestamp 11:15 in this recording, a new voice asks, “You selling drugs up here?” § 87(2)(b) then tells the IAB operator that the person asking this question is the officer who has been harassing him (identified by the investigation as Police Officer Diaz).

In his in-person statement to IAB, § 87(2)(b) stated that Police Officer Diaz approached him closely and asked, “Why don’t you tell them that your people are selling drugs upstairs?” while he was on the phone with an IAB operator (timestamp 2:50 of **Board Review 09**).

In his sworn statement to the CCRB, § 87(2)(b) stated that while he was on the phone with IAB, Police Officer Diaz walked over to him and said, “Why don’t you tell them that your people sell drugs upstairs?” § 87(2)(b) interpreted the phrase “your people” to mean black people. The IAB operator overheard Police Officer Diaz speaking to § 87(2)(b) and asked who was talking to him. § 87(2)(b) told the operator that it was Police Officer Diaz.

In his field interview, § 87(2)(b) stated that he told Detective Kroski that § 87(2)(b) was involved in selling drugs inside of the café.

In his interview, Police Officer Diaz stated that § 87(2)(b) told him that § 87(2)(b) had made a drug sale prior to his arrival. Police Officer Diaz denied making any comments to § 87(2)(b) about his race or ethnicity. § 87(2)(b)’s race was not discussed by any officer or civilian in terms of his physical description or any other factual matter related to allegations of criminality.

In his interview, Police Officer Casillo stated that he initially remained in the police vehicle that he was assigned to while Police Officer Diaz went into the café. Police Officer Casillo stated that, as result, he did not witness the initial portion of this incident.

The videos obtained by the investigation of portions of this incident do not encompass the initial moments of the incident in which this allegation reportedly occurred.

To ask a civilian an accusatory question, a police officer must possess a founded suspicion that the civilian has committed a crime. People v. De Bour 40 N.Y.2d 210

(1976) (**Board Review 12**). According to Patrol Guide procedure 203-10, an officer is prohibited from making discourteous or disrespectful remarks regarding another person's ethnicity or race (**Board Review 30**).

§ 87(2)(g)

it recommended that **Allegation B** be exonerated.

§ 87(2)(g)

Therefore, it is recommended that **Allegation C** be unfounded.

Allegation D – Abuse of Authority: Police Officer Franklin Diaz stopped § 87(2)(b)

Allegation E – Abuse of Authority: Police Officer Christian Casillo stopped § 87(2)(b)

Allegation F – Abuse of Authority: Police Officer Franklin Diaz frisked § 87(2)(b)

Allegation G – Abuse of Authority: Police Officer Franklin Diaz searched § 87(2)(b)

It is undisputed that § 87(2)(b) asked Police Officer Diaz and Police Officer Casillo to remove § 87(2)(b) from the café. Over the course of speaking to § 87(2)(b) for a few minutes, Police Officer Diaz repeatedly instructed him to provide his ID. Police Officer Diaz stood so that § 87(2)(b) was restricted in his movements to a corner of the café, and Police Officer Casillo stood directly behind Police Officer Diaz. After § 87(2)(b) repeatedly refused to provide his ID, Police Officer Diaz reached into his left pants pocket, removed his wallet, and took his ID cards out of the wallet. Over the course of this incident, § 87(2)(b) was never handcuffed or told that he was under arrest, and left the incident area under on his own.

In his sworn statement, § 87(2)(b) stated that Police Officer Diaz asked him “Bossman, do you have ID?” § 87(2)(b) asked Police Officer Diaz why he wanted to see his ID, and told Police Officer Diaz that he did not consent to officers looking at his ID or otherwise “searching and seizing” him. Police Officer Diaz obtained two forms of ID, § 87(2)(b)'s Massachusetts state-issued ID § 87(2)(b). Police Officer Diaz then took photos of both documents with his phone.

§ 87(2)(b)'s field interview was conducted while he was at work, and had to be concluded without § 87(2)(b) providing any statements regarding this portion of the incident.

In his interview, Police Officer Diaz stated that he spoke to § 87(2)(b) who told him that § 87(2)(b) had tried to conduct a drug sale inside of the café “minutes” before he had arrived. The alleged buyer and § 87(2)(b) had then gotten into an argument and threatened to fight one another, bumping chests and shouting in each other's faces. This

prompted § 87(2)(b) to tell them both that they had to leave. § 87(2)(b) refused to leave and called § 87(2)(b) a racist. § 87(2)(b) also threatened him by saying “I’m going to get you,” “I’m going to wait to come out when you leave work,” and “I’m going to beat the crap out of you.” Because of this behavior, § 87(2)(b) explicitly asked Police Officer Diaz to remove § 87(2)(b) from the café. § 87(2)(b) did not describe § 87(2)(b) or anyone else making statements or threats that referenced the possession or use of any kind of weapon (i.e. threatening to stab or shoot someone).

Police Officer Diaz then repeatedly told § 87(2)(b) to leave, but § 87(2)(b) did not comply and remained where he was. Police Officer Diaz noticed a large bulge in § 87(2)(b)s front left pants pocket. The bulge was approximately four or five inches across and “pretty thick,” but Police Officer Diaz was unable to describe the bulge’s shape. At this point, § 87(2)(b) was “kind of agitated and a little aggressive,” and Police Officer Diaz was concerned that the bulge in his pocket could be a weapon. When asked by the investigation what type of weapon he believed the bulge to be, Police Officer Diaz paused before saying “It could have been a gun, a knife, or brass knuckles.” When asked what factors led Police Officer Diaz to be concerned the bulge was a weapon, he said “It was poppin’ up, it could have been a weapon.” § 87(2)(b)s demeanor, the report of an alleged crime in the past, and the bulge were the only factors that led Police Officer Diaz to believe that § 87(2)(b) may have been armed.

Police Officer Diaz touched the bulge with a flat hand and felt that it was hard. Police Officer Diaz then reached into the pocket, removed the bulging object, and saw that it was a wallet. Police Officer Diaz opened and searched the wallet out of concern that a blade could be hidden inside it. While searching the wallet, Police Officer Diaz found § 87(2)(b)s ID and removed it. When asked by the investigation why he wanted § 87(2)(b)s ID, Police Officer Diaz said that he was still investigating to determine if § 87(2)(b) would be arrested for trespassing or threatening the manager.

During Police Officer Diaz’s interview, the investigation played a portion of the footage obtained from PO Casillo’s body-worn camera (**Board Review 16**). The footage was played from timestamp 2:05 through 2:59, and Police Officer Diaz was asked for his recollection of this portion of the incident. Police Officer Diaz said that near the conclusion of the stop, he gave Police Officer Casillo the criminal complaint paperwork and told § 87(2)(b) that he had to leave the store. § 87(2)(b) then approached Police Officer Diaz more closely. Police Officer Diaz put his hand out to prevent § 87(2)(b) from getting any closer, as Police Officer Diaz did not want § 87(2)(b) to get closer to his firearm.

When asked by the investigation why § 87(2)(b) was not arrested for trespass immediately after § 87(2)(b) identified him as unwelcome in the café, Police Officer Diaz said that he exercised his discretion not to arrest him. At the conclusion of this incident, Police Officer Diaz did not arrest § 87(2)(b) but rather filled out a closed complaint report (UF-61) for trespass and a stop and frisk report (UF-250). Upon returning to his stationhouse, Police Officer Diaz spoke to a supervisor who instructed him to void the stop and frisk report and fill out a voided arrest report charging § 87(2)(b) with trespass. Police Officer Diaz then prepared this new paperwork.

In his interview, Police Officer Casillo stated that Police Officer Diaz frisked § 87(2)(b). Prior to this frisk, § 87(2)(b) had not taken any action that Police Officer Casillo considered physically threatening. Police Officer Casillo did not recall whether he observed anything about § 87(2)(b)'s person that was indicative of a weapon.

Police Officer Casillo's BWC footage captured the conclusion of this stop (**Board Review 16**). After speaking with § 87(2)(b) and filling out a form, Police Officer Diaz walks back over to § 87(2)(b) and states "Alright sir, do me a favor, you're going to have to leave. Either you go on your own or you come back with me" (timestamp 1:52). § 87(2)(b) asks, "Can I enjoy my coffee?" while pointing to the area of the store in which he is standing. Police Officer Diaz replies, "No, you are no longer welcome here." § 87(2)(b) begins to speak, and Police Officer Diaz interrupts him by saying "Sir, I'm going to ask you one more time, you leave on your own or you leave with me and we go back to the Precinct." § 87(2)(b) does not move, and begins to speak again (the audio does not clearly resolve what he is saying.) Police Officer Diaz again tells him "I'm going to ask you one more time to leave on your own, because the gentleman from the premise does not want to see you here." Police Officer Diaz then turns toward Police Officer Casillo and appears to hand him a paper form while saying "Hold this for me." While Police Officer Diaz is turned away from § 87(2)(b), § 87(2)(b) steps toward him. Police Officer Diaz turns back towards § 87(2)(b) and then places the tips of the fingers of his right hand against § 87(2)(b)'s chest. § 87(2)(b) takes a step back, and Police Officer Diaz turns his back to the camera so that he is no longer between § 87(2)(b) and the café exit. When § 87(2)(b) asks, "Why did you push me?" Police Officer Diaz responds, "You were coming to my weapon side." § 87(2)(b) then walks past Police Officer Diaz and exits the café (timestamp 2:31).

None of the BWC video obtained by the investigation show the portion of the incident in which Police Officer Diaz reached into § 87(2)(b)'s pocket.

The cellphone video recorded by § 87(2)(b) shows the portion of the incident in which Police Officer Diaz reached into § 87(2)(b)'s pocket (**Board Review 10**). Immediately after repeatedly asking § 87(2)(b) for his ID, Police Officer Diaz says, "No problem," reaches toward the middle of § 87(2)(b)'s body, and obtains his wallet (timestamp 0:22). Police Officer Diaz then removes an item or items from inside of the wallet. As he does this, Police Officer Diaz says, "That was a big bulge you had there." At timestamp 0:53, Police Officer Diaz asks § 87(2)(b) whether § 87(2)(b) is allowed in the store, and § 87(2)(b) states that he wants § 87(2)(b) removed. Approximately five minutes later (timestamp 6:03), after preparing a written report, Police Officer Diaz hands § 87(2)(b) his IDs back and tells § 87(2)(b) that he had to reach into his pocket because he was scared for his safety.



Frisk.mp4

To frisk a suspect, an officer must possess particularized reasonable suspicion that the suspect is armed and may be dangerous. People v. Russ 61 N.Y.2d 693 (1984) (**Board Review 11**). To stop an individual, an officer must possess a reasonable suspicion that they have committed a crime. Observations that are equally susceptible to innocent and suspicious explanation are not sufficient to justify police action. The location of a potentially suspicious bulge on a person's body is important; whereas a pocket bulge could be caused by any number of innocuous objects, a waistband bulge is telltale of a weapon. People v. De Bour 40 N.Y.2d 210 (1976) (**Board Review 12**). To justify the frisk of a person based on the observation of a bulge, an officer must be able to describe that bulge and the specific factors that suggested it was a weapon. People v. Prochilo 41 N.Y.2d 759 (1977), People v. Stevenson 7 A.D.3d 820 (2004). (**Board Review 13, Board Review 14**). To search a person incident to lawful arrest, an officer must affect that arrest, and not merely have probable cause to do so. People v. Reid 24 N.Y. 3d 615 (2014) (**Board Review 15**).

§ 87(2)(g)

§ 87(2)(g)

Therefore, it is recommended that **Allegation D** and **Allegation E** be **exonerated**.

Police Officer Diaz described frisking § 87(2)(b) himself and Police Officer Casillo stated that he observed the frisk as it happened. § 87(2)(g)

§ 87(2)(g)

[REDACTED]

§ 87(2)(g)

[REDACTED]

§ 87(2)(g)

[REDACTED]

[REDACTED] it is recommended that **Allegation F** be substantiated.

§ 87(2)(g)

[REDACTED]

[REDACTED] In People v. Stevenson, the court emphasizes that an observed bulge must be describable to the point where it cannot be readily explained as innocuous. § 87(2)(g)

[REDACTED]

§ 87(2)(g)

[REDACTED]

[REDACTED] it is therefore recommended that **Allegation G** be substantiated.

Allegation H – Abuse of Authority: Police Officer Diaz threatened to arrest § 87(2)(b)

It is undisputed that Police Officer Diaz told § 87(2)(b) that he could be arrested. In his sworn statement, § 87(2)(b) stated that Police Officer Diaz prepared a written report, gave § 87(2)(b) his IDs back, and told him he had to leave the store. § 87(2)(b) asked, “Can I enjoy my coffee without being continuously harassed?” Police Officer Diaz said “No, you have to leave the store or I’m going to take you to the Precinct.”

§ 87(2)(b)'s field interview was conducted while he was at work, and had to be concluded without § 87(2)(b) providing any statements regarding this portion of the incident.

In his interview, Police Officer Diaz stated that he believed that, at some point during the incident, he told § 87(2)(b) that he could be arrested for criminal trespass. Police Officer Diaz could not recall when he said this, but believed that it would have been “minutes and minutes” into the incident.

In his interview, PO Casillo stated that after preparing the complaint report, Police Officer Diaz approached § 87(2)(b) and gave him one final chance to leave the café. Police Officer Diaz told § 87(2)(b) that he could leave on his own, or he could leave in handcuffs.

Video from Police Officer Casillo’s BWC shows the portion of the incident containing this allegation (**Board Review 16**). At the beginning of this clip, Police Officer Diaz speaks to § 87(2)(b) who confirms that he is an employee of the café and he does not want § 87(2)(b) to remain inside of the business. At timestamp 0:15 in the clip below (**Board Review 17**), Police Officer Diaz tells § 87(2)(b) to leave the café, explains that the manager does not want him inside, and then tells him that if he does not leave that he will be taken to a stationhouse.



Threat of Arrest.mp4

According to New York Penal Law 140.05, a person is guilty of trespass when he knowingly enters or remains unlawfully in or upon premises. A person "enters or remains unlawfully" in or upon premises when he is not licensed or privileged to do so. A person loses their license or privilege to remain at a location when he defies a lawful order not to enter or remain, personally communicated to him by the owner of such premises or other authorized person (**Board Review 18**).

§ 87(2)(g)

§ 87(2)(g) Therefore, it is recommended that **Allegation H** be **exonerated**.

Allegation I – Abuse of Authority: Police Officer Franklin Diaz threatened § 87(2)(b) with the use of force.

It is undisputed that § 87(2)(b) left the café after being repeatedly ordered to do so by Police Officer Diaz. From just outside of the café entrance, § 87(2)(b) then cursed at Police Officer Diaz. Police Officer Diaz stepped out of the café and approached § 87(2)(b).

§ 87(2)(b) In his sworn statement, § 87(2)(b) stated that he left the store and then called Police Officer Diaz a “bitch.” In response, Police Officer Diaz “rushed outside” and said, “What did you say?”

§ 87(2)(b) s field interview was conducted while he was at work, and had to be concluded without § 87(2)(b) providing any statements regarding this portion of the incident.

In his interview, Police Officer Diaz did not initially describe § 87(2)(b) cursing at him. However, during this interview the investigation played a portion of Police Officer Casillo’s BWC video for Police Officer Diaz to view. In the relevant portion, § 87(2)(b) can be heard saying “fuck you,” at which point Police Officer Diaz leaves the café and approaches him. Upon viewing the video, Police Officer Diaz recalled this happening and recalled that this insult was directed at him. When asked why he went outside of the café, Police Officer Diaz explained that he wanted to make sure that § 87(2)(b) was not going to come back inside of the store. Police Officer Diaz was also concerned that § 87(2)(b) might have stashed a weapon outside of the store, under a garbage can or another object. Police Officer Diaz was concerned that § 87(2)(b) might use this weapon against him or against the manager, given the threats that § 87(2)(b) had reportedly made. After approaching § 87(2)(b) closely, Police Officer Diaz can be heard telling § 87(2)(b) to “say that again.” When asked why he wanted § 87(2)(b) to repeat a profanity, Police Officer Diaz said that he wanted to determine if § 87(2)(b) was speaking to him.

§ 87(2)(g) § 87(2)(b) is approximately 5’6” tall and weighs approximately 140 pounds. According to the officer demographic sheet that he filled at the time of his interview, Police Officer Diaz is approximately 6’3” tall and weighs approximately 250 pounds (**Board Review 19**).

The relevant portion of Police Officer Casillo’s BWC video is embedded here (**Board Review 17**). At timestamp 0:57, § 87(2)(b) has left the café and Police Officer Diaz turns and walks away from the café door. § 87(2)(b) can be heard saying “Hey, fuck you.” Police Officer Diaz immediately turns around and walks out of the café towards

§ 87(2)(b) At timestamp 1:07, Police Officer Diaz stands only a few inches away from
§ 87(2)(b) looks directly down at him, and says “Say that again” twice.



Threat of Arrest.mp4

According to NYPD Patrol Guide procedure 221-01, any use of force by an officer must be reasonable under the circumstances. An officer is prohibited from using any level of force to punish, retaliate against, or coerce a subject (**Board Review 20**).

§ 87(2)(g)

§ 87(2)(g)

It is therefore recommended that **Allegation I** be substantiated.

Allegation J – Force: Police Officer Franklin Diaz used physical force against § 87(2)(b)

Allegation K – Abuse of Authority: Police Officer Franklin Diaz interfered with
§ 87(2)(b) **s use of a recording device.**

In his sworn statement, § 87(2)(b) stated that, as Police Officer Diaz approached him outside of the café, he tried to grab his phone at this point. However, Police Officer Diaz grabbed his right arm tightly, twisted it, and held it in a twisted position for approximately 30 to 40 seconds while trying to grab his phone. § 87(2)(b) was holding his

phone too tightly for Police Officer Diaz to obtain it, and eventually Police Officer Diaz gave up and went back inside.

In his interview, Police Officer Diaz was asked whether he touched § 87(2)(b) at this point in the incident. Police Officer Diaz stated that he “glided” his hand along § 87(2)(b) s arm to guide him away from the store, but made no further physical contact.

In his interview, Police Officer Casillo did not recall whether Police Officer Diaz followed § 87(2)(b) out of the café and grabbed his arms, twisted § 87(2)(b) s arm, or otherwise interfered with § 87(2)(b) s cellphone.

The relevant portion of Police Officer Casillo’s BWC video is embedded below **(Board Review 17)**. At timestamp 1:09, Police Officer Diaz uses his right hand to guide § 87(2)(b) s torso away from the store entrance. This action lasts for approximately one second. § 87(2)(b) takes a single step back, but does not stumble, fall, or complain of pain. After this momentary contact, Police Officer Diaz walks away from § 87(2)(b) and reenters the café. As he walks away from § 87(2)(b) § 87(2)(b) can be seen holding his cell phone in front of his torso. At no point in the video does Police Officer Diaz grab § 87(2)(b) for an extended period, twist his arm, or visibly reach for or grab at his phone.



Threat of Arrest.mp4

§ 87(2)(g)
it is recommended that **Allegation J** and **Allegation K** be **unfounded**.

§ 87(4-b), § 87(2)(g)

[illegible]

Civilian and Officer CCRB Histories

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| ○ | § 87(2)(b) | |
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- § 87(4-b), § 87(2)(g) [REDACTED]
- [REDACTED]
- [REDACTED]
- [REDACTED]
- [REDACTED]
- [REDACTED]
- [REDACTED]

- Detective Kroski has been a member of service for ten years and has been a subject in 11 cases and 23 allegations, of which none were substantiated.
- Police Officer Diaz has been a member of service for ten years and has been a subject in three cases and six allegations, of which none were substantiated.
- Police Officer Casillo has been a member of service for two years and this is the first case in which he was a subject.

Mediation, Civil and Criminal Histories

- § 87(2)(b) [REDACTED] declined to mediate this complaint.
- As of September 20, 2018, the New York City Office of the Comptroller has no record of a Notice of Claim being filed regarding this complaint (**Board Review 31**).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)] [REDACTED]

Squad No.: 10

Investigator: _____

Signature	Print Title & Name	Date
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Squad Leader: _____

Signature	Print Title & Name	Date
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Reviewer: _____

Signature	Print Title & Name	Date
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